EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 75737/11
Mariam BATIASHVILI and Irina BATIASHVILI-GELASHVILI
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 30 June 2015 as a Committee composed of:

Paul Mahoney, *President,*
Nona Tsotsoria,
Faris Vehabović, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 8 December 2011,

Having regard to the declaration submitted by the respondent Government on 3 April 2015 requesting the Court to strike the application out of the list of cases and the applicants' reply to that declaration,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicants, Ms Mariam Batiashvili and Ms Irina Batiashvili-Gelashvili are Georgian nationals, who were born in 1969 and 1990 respectively and live in Tbilisi. They were represented before the Court by Mr N. Kvaratskhelia, a lawyer practising in Tbilisi.

2. The Georgian Government ("the Government") were represented by their Agent, Mr L. Meskhoradze, of the Ministry of Justice.

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. The applicants were arrested by the police at around 5 p.m. on 5 June 2011 in the centre of Tbilisi, nearby the building of Parliament of Georgia at the moment when they joined a peaceful demonstration. That demonstration had been planned by a limited number of young opposition activists who wished to denounce publicly the allegedly excessive use of force by the

police during dispersal of another, larger manifestation of opposition forces which had occurred on 26 May 2011.

5. Later in the evening of the same day, at around 8.00 p.m., the arrested applicants were tried by the Tbilisi City Court. After having heard the statements from the accused, who were assisted by a qualified lawyer of their choice, the police officers who had effectuated their arrest, as well as a number of independent witnesses who had been summoned by the defence counsel, the court found the applicants guilty, under Articles 166 and 173 of the Code of Administrative Offences, of administrative offences of breach of public order and disobedience with police officers' lawful orders. In particular, the impugned actions consisted, according to the court's findings, in the applicants' preferring insults in a public setting and refusing to desist from that wrongful activity even after the police officers' instruction to do so. The applicants were sentenced to pay, each, a fine of 400 Georgian Laris (some 170 Euros)

6. The applicants' appeal against their conviction was dismissed as manifestly ill-founded by the Tbilisi Court of Appeals on 7 June 2011.

THE LAW

7. The applicants complained about the interference with their right to hold a peaceful demonstration on 5 June 2011. They relied on Articles 10 and 11 of the Convention.

8. After the communication of the application on 1 December 2014, by a letter of 3 April 2015 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issue raised by the application.

9. To that end, the Government acknowledged a violation of the applicants' rights guaranteed by Article 11 of the Convention. They undertook to pay each of the applicants 1,000 (one thousand) euros to cover any and all pecuniary and non-pecuniary damage as well as costs and expenses, which will be converted into the national currency at the rate applicable on the date of payment, and will be free of any taxes that may be applicable and payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. They further requested the Court to strike out the application.

10. On 30 May 2015 the Court received a letter from the applicants informing the Court that they agreed to the terms of the Government's declaration.

11. The Court first notes that since the case relates to the applicants' inability to hold a public assembly, the Government's declaration acknowledging a violation of Article 11 of the Convention is sufficient, as the latter provision is the *lex specialis* in the present case, and it is unnecessary to take the complaint under Article 10 into consideration separately (see, for instance, *Ezelin v. France*, 26 April 1991, §§ 35 and 37, Series A no. 202).

12. It further considers that following the applicants' express agreement to the terms of the declaration made by the Government the case should be treated as a friendly settlement between the parties.

13. The Court therefore takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the application.

14. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases pursuant to Article 39 of the Convention.

Done in English and notified in writing on 23 July 2015.

Fatoş Aracı
Deputy Registrar

Paul Mahoney
President